Notice to End your Tenancy
For Interfering with Others, Damage or Overcrowding
N5
(Disponible en français)

To: (Tenant's name) include all tenant names	**From: (Landlord's name)**
Address of the Rental Unit:	

This is a legal notice that could lead to you being evicted from your home.

The following information is from your landlord

I am giving you this notice because I want to end your tenancy - I want you to move out of your rental unit by the following termination date: __ __ / __ __ / __ __ __ __ .
dd/mm/yyyy

My Reason(s) for Ending your Tenancy

I have shaded the box(es) next to my reason(s) for ending your tenancy. I have also indicated whether this notice is your first or second *Notice to End your Tenancy*.

☐ **Reason 1**: Your behaviour or the behaviour of someone visiting or living with you has substantially interfered with another tenant's or my:

- reasonable enjoyment of the residential complex, and/or
- lawful rights, privileges, or interests.

☐ **You have 7 days to stop the activities or correct the behaviour described on page 2 and avoid eviction**. You will not have to move out if you correct the behaviour described on page 2 within 7 days after receiving this notice. However, if you do not correct the behaviour within 7 days, I can apply to the Board for an order to evict you.

☐ **I can apply to the Board immediately for an order to evict you**. This is your **second** *Notice to End your Tenancy* in the past 6 months for a reason with a 7-day correction period. You cannot void this notice and I can apply to the Board for an order to evict you.

☐ **Reason 2:** You or someone visiting or living with you has wilfully or negligently damaged the rental unit or the residential complex.

☐ **You have 7 days to correct the problem(s) described on page 2 and avoid eviction.** You will not have to move out if you correct the problem(s) within 7 days after receiving this notice. However, if you do not correct the problem(s) within 7 days, I can apply to the Board for an order to evict you.

You can correct the problem(s) by:

- repairing the damaged property.

or

- paying me $ _ _ _ _ _ _ . _ _ , which is how much I estimate it will cost to repair the damaged property.

or

- replacing the damaged property, if it is not reasonable to repair it.

or

- paying me $ [ ][ ][ ][ ][ ][ ].[ ][ ], which is how much I estimate it will cost to replace the damaged property if it is not reasonable to repair it.

or

- making arrangements acceptable to me to either:
  - repair or replace the damaged property, or
  - pay me what I estimate it will cost to repair or replace the damaged property**.**

☐ **I can apply to the Board immediately for an order to evict you**. This is your **second** *Notice to End your Tenancy* in the past 6 months for a reason with a 7-day correction period. You cannot void this notice and I can apply to the Board for an order to evict you.

☐ **Reason 3:** There are more people living in your rental unit than is permitted by health, safety or housing standards.

☐ **You have 7 days to reduce the number of people living in the rental unit to** _____

You will not have to move out if you reduce the number of people living in the rental unit within 7 days after receiving this notice. However, if you do not reduce the number of people living in the rental unit within 7 days, I can apply to the Board for an order to evict you.

☐ **I can apply to the Board immediately for an order to evict you**. This is your **second** *Notice to End your Tenancy* in the past 6 months for a reason with a 7-day correction period. You cannot void this notice and I can apply to the Board for an order to evict you.

Details About the Reasons for this Notice

I have listed below the events that have led me to give you this notice, including the dates, times and specific details.

Date/Time	Details of the Events

Important Information from the Landlord and Tenant Board

The termination date

If this is your first N5 *Notice to End your Tenancy* in the past 6 months, the termination date on page 1 must be at least **20 days** after the landlord gave you this notice.

If this is your second N5 *Notice to End your Tenancy* in the past 6 months, the termination date on page 1 must be at least **14 days** after the landlord gave you this notice.

Note: A landlord cannot give you a second N5 *Notice to End your Tenancy* unless at least 7 days have passed since the first N5 notice was given.

What if you agree with the notice?

If you agree with what the landlord has put in this notice, and this is your first *Notice to End your Tenancy* in the past 6 months, you should correct the problem(s) described on page 2 within 7 days after receiving this notice. If you do, the landlord cannot apply to the Board to evict you based on this notice.

The landlord can apply to the Board to evict you if:

- you do not correct the problem(s) within 7 days, or
- this is your second *Notice to End your Tenancy* in the past 6 months.

If the landlord applies to evict you, you do not have to move out. The Board will schedule a hearing which you can attend. However, if the landlord applies to the Board to evict you and the Board orders eviction, you will likely have to pay the landlord's filing fee.

What if you disagree with the notice?

You do not have to move out if you disagree with what the landlord has put in this notice. However, the landlord can apply to the Board for an order to evict you. The Board will schedule a hearing where you can explain why you disagree.

What if you move out?

If you move out of the rental unit by the termination date, your tenancy ends on that date. However, if your landlord gave you this notice because you damaged the rental unit or the residential complex, you may still owe the landlord money for the damage.

What if the landlord applies to the Board?

If the landlord applies to the Board to evict you, the Board will schedule a hearing and send you a copy of the application and the *Notice of Hearing*. The *Notice of Hearing* sets out the date, time and location of the hearing. At the hearing, the landlord will have to prove the claims they made in this notice and in the application and you can respond to the claims your landlord makes.

How to get more information

For more information about this notice or your rights, you can contact the Landlord and Tenant Board. You can reach the Board by phone at **416-645-8080** or **1-888-332-3234.** You can visit the Board's website at **tribunalsontario.ca/ltb**.

Signature ☐ Landlord ☐ Representative

First Name

Last Name

Phone Number

( ) -

Signature	Date (dd/mm/yyyy)

Representative Information (if applicable)

Name	LSUC #	Company Name (if applicable)

Mailing Address	Phone Number

Municipality (City, Town, etc.)	Province	Postal Code	Fax Number

OFFICE USE ONLY:

File Number

Delivery Method: ☐ In Person ☐ Mail ☐ Courier ☐ Email ☐ Efile ☐ Fax FL